

Court No. - 32

Case :- WRIT - C No. - 419 of 2020

Petitioner :- Shri Nath Prajapati

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Awadh Narain Rai

**Counsel for Respondent :- C.S.C.,Mahboob
Ahmad**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, *inter alia*, for the following reliefs:

"(a) issue a writ, order or direction in the nature of certiorari quashing the recovery certificate dated 14.10.2019 (Annexure no. 7) issued by respondent no. 2 in interest of justice in accordance with law.."

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without deciding the objection of the petitioner and without following the provisions contained under the U.P. Electricity Supply Code 2005.

Mr. Mahboob Ahmad, learned Standing Counsel for the electricity department submits that the

objection of the petitioner is pending for disposal before the respondent no. 2, Executive Engineer and the date 13.1.2020 is already fixed in the matter.

Heard the learned counsel for the petitioner, Mr. Mahbood Ahmad, learned counsel for the electricity department and perused the record.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 13.1.2020 at 11.00 A.M. before the Respondent No.2, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.3, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of five weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed and files his

objection, the impugned demand notice shall stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 9.1.2020

MLK